

Notice from the National Commission for Data Protection regarding
Bill No. 8180 establishing the conditions related to the organization
of non-urgent ground medical transport
Deliberation No. 8/AV3/2024 of February 23, 2024

1.

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), which is referenced in Article 7 of the law of August 1, 2018, organizing the National Commission for Data Protection and the general regime on data protection, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Article 36.4 of the GDPR states that "Member States consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative proposal, which relates to processing."

2.

By letter received on March 22, 2023, the Minister of Health invited the National Commission to express its opinion on Bill No. 8180 establishing the conditions related to the organization of non-urgent ground medical transport (hereinafter referred to as the "Bill").

3.

According to the explanatory memorandum, the main objective of the Bill is to establish a legal framework for companies providing non-urgent ground medical transport services, outside the missions assigned to the Grand Ducal Fire and Rescue Corps (CGDIS). This framework aims to define minimum standards regarding the equipment and hygiene of vehicles, as well as the necessary training for personnel. To this end, the proposed law contemplates the processing of personal data, notably in the context of issuing licenses, creating a national register containing personal data, or verifying the integrity of crew members.

4.

This opinion will focus on the data protection issues raised by the Bill.

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5.

Article 3 of the Bill aims to specify that anyone wishing to engage in the activity of ground medical transport, whether as a primary or ancillary activity, must hold a license issued by the Minister of Health (hereinafter referred to as the "Minister"). Article 4 makes the issuance of the license subject to two cumulative conditions, namely, on the one hand, the possession of an establishment authorization and, on the other hand, the possession of the material and technical facilities provided for in Article 12 of the Bill.

6.

Article 5 of the Bill under review enumerates the information that must be included in the license application addressed to the Minister, among which are personal data. Thus, it follows from the first paragraph, point 1, of the aforementioned article that the license application must indicate "[...] the names, first names, profession, and address of the applicant, or if it is a legal

entity, the name or business name, the form of the legal entity, and its registered office, as well as the names, first names, profession, and address of the directors, managers, or administrators." According to point 2, the license application must be accompanied by a certificate signed by the natural or legal person proposing to engage in the activity of ground medical transport, although the purpose of this certificate is not defined.

Furthermore, the Bill under review provides in the same paragraph, in point 3, that the license applications in question must "include the recent criminal record extracts No. 3 and 5, both dated less than three months from the date of submission of the license application for both the applicant and the directors, managers, and administrators referred to in point 1."

7.

Like the Chamber of Trades, the CNPD questions to what extent the personal data listed in Article 5 of the Bill would be relevant to assess compliance with the conditions for obtaining the license, as stated in Article 4 of the same Bill. More specifically, the National Commission questions the relevance of including, for example, the profession and address of the director, manager, or administrator of the company, as well as examining the criminal record extracts No. 3 and 5 of the license applicant to verify whether the latter possesses "an establishment authorization or at least a principle decision within the meaning of Article 12, paragraph 2, of the amended law of September 2, 2011 regulating access to the professions of craftsman, merchant, industrialist, as well as certain...

1 Cf. opinion of the Chamber of Trades of May 26, 2023, doc. parl. No. 818/01 (hereinafter referred to as the "opinion of the Chamber of Trades"), points 1.1.2 and 2.2.

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****II. On the establishment of a register containing personal data and the transmission of said register to the competent minister****

9. The proposed law provides in its Article 10 "that a register containing personal data is established under the authority of the minister, which aims for the management and administrative follow-up, the control of approval requests, as well as the management of approval files and granted approvals." The National Commission welcomes that the text under review determines the purposes of the register, in accordance with the principle of purpose limitation enshrined in Article 5.1.b) of the GDPR, as well as the data controller, namely the minister.

10. The second paragraph of Article 10 of the draft law mentions that the register concerns the data listed in Article 5. The CNPD refers to its observations under points 7 and 8 of this opinion and draws the attention of the authors of the draft law to the importance of the principle of data minimization under which only data necessary for the purposes listed in Article 10.1 of the draft law may be processed.

11. The CNPD also questions whether the information concerning the registration certificate, the technical inspection certificate of the medical vehicle, as well as the insurance policy certificate certifying coverage of civil liability related to the medical vehicle, the transmission of which by the SNCA to the minister is provided for in Article 11.4 of the draft law, is also subject to registration in the aforementioned register. Indeed, the text of the draft law should exhaustively list the categories of data that may appear therein, while ensuring compliance with the principle of data minimization.

2 Cf. Article 4 of the draft law.

3 Cf. Opinion of the Chamber of Trades, point 2.2.a).

4 Cf. Article 10.3 of the draft law.

12.

Paragraph 4 of Article 10 of the draft law states that “only those who need it in the exercise of their function and professional tasks have access to the register,” which is in accordance with the principle of security and confidentiality established in Articles 5.1.f) and 32 of the GDPR. However, the CNPD regrets that the text under review does not provide for a logging system for access that would allow for monitoring compliance with this principle. In this regard, the National Commission recommends that logging data be retained for a period of five years from the date of their recording, after which they are deleted, unless they are subject to a control procedure.

13.

Furthermore, it follows from paragraph 5 of Article 10 that “the processed data is irreversibly anonymized or destroyed no later than five years after the end of the approval or, in the event that the approval request has been denied, after the decision of denial.” The National Commission positively notes that the draft law determines the retention period for data intended to be included in the register. Nevertheless, due to the lack of explanations in the commentary on the article regarding the necessity of retaining data for a period of five years after the end of the approval or the decision of denial, it is unable to assess whether the principle of data retention limitation is respected in this case.

14.

Article 10.6 of the draft law states that “access to the data by third parties may only occur in an anonymized form.” Regarding this wording, the CNPD assumes that the authors intended to refer to third parties' access to the data and not the access of the data to third parties. Furthermore, it wishes to emphasize that the legal framework established by the GDPR does not apply to anonymous or even anonymized data. Recital (26) of the GDPR states in this regard that there is “no need to apply the principles relating to the protection of personal data to anonymous information, that is to say, information that does not relate to an identified or identifiable natural person, nor to personal data rendered anonymous in such a way that the data subject is not or no longer identifiable. This regulation, therefore, does not apply to the processing of such anonymous information, including for statistical or research purposes.” However, it is necessary to ensure that the data in question is indeed anonymous and not pseudonymized data that could indirectly identify a natural person through the use of additional information, which would fall within the scope of the GDPR.

5 See Article 5.1.e) of the GDPR

6 For all practical purposes, the CNPD refers to Opinion 05/2014 of the “Article 29” Working Party on anonymization techniques, available at:

https://cnpd.public.lu/content/dam/cnpd/fr/publications/groupe-art29/wp216_en.pdf

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III.

On the transmission of data by the SNCA to the minister

15.

According to Article 11.4 of the draft, “[i]n the event of the registration of a health vehicle, the SNCA shall promptly send, electronically, to the minister the information related to the registration certificate, the technical inspection certificate of the health vehicle, as well as the insurance policy certificate certifying that the civil liability that the health vehicle may give rise to is covered. [...]”.

16.

Insofar as data relating to identified or identifiable natural persons are concerned, the provision under review imposes a legal obligation on the SNCA to transmit personal data to the minister, without specifying the purposes for which the data are transmitted. Thus, Article 11.4 of the draft law risks

being contrary to Article 6.3 of the GDPR, read together with Article 6.1.e), under which a legal provision that creates an obligation for the data controller making data processing necessary must define the purposes of the processing.

17.

In light of the silence of the text under review, the National Commission is unable to assess whether the principle of proportionality, as guaranteed notably by Article 37 of the Constitution, or the principle of data minimization is respected.

IV.

On the integrity check of the crew members of a health vehicle

18.

It follows from Article 13 of the draft law that each crew member of a health vehicle must meet various conditions, including compliance with the integrity requirements as provided by Article 17 of the draft law under review. It is clear from the first paragraph of the aforementioned Article 17 that integrity is assessed “based on the criminal records resulting from the criminal record”, while the subsequent paragraphs enumerate the offenses to be considered for the purpose of evaluating the integrity of a crew member of a health vehicle.

19.

Although the CNPD understands the necessity of checking the integrity of crew members, it regrets the lack of precision in the text regarding how the integrity check will be conducted. It would be desirable to obtain clarifications on which specific documents and criminal record bulletin numbers will be taken into account for this purpose. Furthermore, it should be noted that paragraph 2 of Article 17 seems to contain only an exemplary enumeration (“in particular”) of the circumstances under which the integrity requirements are satisfied, which amplifies the legal uncertainty regarding the documents that may be consulted in the context of the integrity check.

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20.

Moreover, the text under review does not clearly specify which actor is responsible for conducting the integrity check. It is necessary to clarify whether the check in question falls under the responsibility of the employer in the recruitment process or if the competent minister is the entity in charge of this check. Consequently, the CNPD regrets the lack of precision in the provision in question and strongly recommends clarifying, on the one hand, which actor will be responsible for conducting the aforementioned check and, on the other hand, based on which documents the integrity will be verified.

V.

On the maintenance and transmission of a list of staff members

21.

Article 18 of the draft law imposes on health transporters the obligation to keep an up-to-date list of the staff members comprising the crews of health vehicles, specifying their level of training, and to transmit this list to the competent minister annually.

22.

In the absence of an indication of the purpose pursued by this processing, the CNPD finds itself unable to express an opinion on the necessity of this measure, which constitutes a limitation of the right to informational self-determination and the protection of data enshrined in Article 31 of the Constitution. Additionally, Article 18 of the draft law risks being contrary to Article 6.3 of the GDPR, read in conjunction with Article 6.1.e). It follows from these provisions that the law of the European Union or the national law of a Member State that creates a legal obligation for the data controller making data processing necessary must define the purposes of the processing.

23.

It is also imperative to provide clarifications regarding the categories of data that must appear on this

list that will be transmitted to the minister. It is indeed crucial to precisely define the information to be included on this list, especially since failing to keep the list of staff members up to date is subject to criminal penalties under Article 23. In accordance with Articles 31 and 37 of the Constitution, the data to be transmitted by health transporters to the minister must be exhaustively stated at the legislative level and respect the principle of proportionality.

7 See in this sense: opinion of the Council of State 60.868 of December 22, 2023, doc. pari. no. 7932/05, p. 10.

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Thus adopted in Belvaux on February 23, 2024.

The National Commission for Data Protection;

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